

KABC010185092023



IN THE COURT OF I ADDL. CITY CIVIL & SESSIONS JUDGE
AT BENGALURU (CCH.No.2)

Present :- SRI. SREENIVASA, B.A., LL.B.,
I Addl. City Civil & Session Judge,
Bengaluru.

Dated this the 29th day of November, 2023

Ex.No.1789 / 2023

DECREE HOLDERS :-

R.Seshan,
S/o. R.Ramanujalu,
Aged about 50 years,
R/at No.425, Domlur, 8th Cross,
Bengaluru-560 007

Since dead by his LRs.

1. Sri. S.Muralidhar,
S/o. Seshan,
Aged about 56 years,
R/at No.390, 1st Cross,
5th Lakshmi Road, Shanthinagar,
Bengaluru-560 027.

2. Smt. Sheela V,
D/o. Seshan,
Aged about 53 years,
R/at No.390, 1st Cross,
5th Lakshmi Road, Shanthinagar,
Bengaluru-560 027.

3. Sri. Chandrashekar Seshan,
S/o. Seshan,
Aged about 48 years,
R/at No.390, 1st Cross,
5th Lakshmi Road, Shanthinagar,
Bengaluru-560 027.

Rep. By Attorney Holder
Mrs.Sheela V.
D/o. Seshan,
Aged about 53 years.
R/at No.390, 1st Cross,
5th Lakshmi Road, Shanthinagar,
Bengaluru-560 027.

(By Sri.J.H.S., Adv.)

- VS -

JUDGMENT DEBTORS :-

Sri.A.Chandrasekharan,
S/o. Late R. Anandan Pillai,
Since dead by legal
representatives.

1a) Smt. J. Indira Bai,
W/o. A. Chandrashekar,
Major.

1b) Smt.Srikala C,
W/o. Sandeepa Bisht,
D/o. A. Chandrashekar.

Both r/at No.771, 1st Main,
1st Cross, Indiranagar 1st Stage,
Bengaluru.

(Absent)

ORDERS

The Decree Holders have filed this petition against the Judgment Debtors under Order 21 Rule 11 (2) of CPC seeking for direction to execute and register the cancellation deed / agreement or the orders dated 12.08.2011 passed in SLP (C) No.20968/2011, in favour of the DHRs, in the interest of justice and equity.

2. a) Along with the execution petition, one S. Muralidhara has filed affidavit stating that, they along with Chandrashekar Seshan are the legal representatives of R.Seshan, the original DHR, as such, they are well aware of the facts and circumstances of this execution petition. Chandrashekar Seshan s/o. Late R. Seshan is represented by his Power of Attorney holder i.e., second of them in the accompanying execution petition. Their Late father R.Seshan died on 26.06.2021 and his death certificate is produced. Their mother predeceased the death of their father on 18.01.2011. A.Chandrashekar, the original JDR had filed a suit for specific performance and permanent injunction in O.S.No.5448/1989. The said suit came to be decreed on 01.10.2005. The original DHR had challenged the said judgment and decree dated 01.10.2005 before the Hon'ble High Court in RFA No.142/2006. During the pendency of the appeal, the original JDR expired and his legal heirs were brought on record i.e., the JDRs herein. The Hon'ble High Court vide judgment and decree dated 21.02.2011 allowed the appeal and set aside the judgment and decree dated 01.10.2005 passed in O.S.No.5488/1989 and also directed the original decree holder to pay a sum of Rs.3,50,000/- with interest at the rate of 24% from 01.08.1988.

2b) It is further submitted that, the JDRs herein approached

the Hon'ble Supreme Court of India in Special Leave to Appeal (Civil) No.20968/2011. The Hon'ble Supreme Court vide order dated 12.08.2011 has dismissed the appeal. The said judgment and decree dated 21.02.2011 passed in RFA No.142/2006 attained finality pursuant to the dismissal of the SLP (c) No.20968/2011. The JDRs did not accept the amount as directed by the Hon'ble High Court in RFA No.142/2006 in the judgment and decree dated 21.02.2011 and also failed to hand over the vacant possession of the schedule property. Being aggrieved by the said acts and conduct of the JDRs, the original DHR has filed a suit in O.S.No.8398/2011. This Court passed the judgment decree vide order dated 23.09.2019, directing the JDRs to hand over the vacant possession of the suit schedule property to the original DHR by receiving an amount of Rs.3,50,000/- with interest at the rate of 24% from 01.08.1988 as per the directions of the Hon'ble High Court in RFA No.142/2006. Since the JDRs did not handover the possession of the schedule property, the original DHR filed an execution petition No.4185/2019 to recover the possession. In the said execution petition, the JDRs handed over the keys and also the original sale deed dated 17.05.1988 and allotment letter dated 09.10.1974 to the original DHR i.e., their father. The original DHR expired on 26.06.2021 and he is survived by his two sons and daughter. This being so, they the children of the original DHR and Smt.Sumithra for want of funds and fulfill other legal necessities decided to sell the suit schedule property and accordingly, approached the revenue authorities for change in khatha. However, as per the requirements of the revenue authorities, upto date encumbrance had to be obtained. On obtaining the EC, it was noticed that, the entry with regard to the registered sale agreement dated 01.08.1988 has not been cancelled pursuant to the RFA, SLP and the judgment and

decree dated 23.09.2019 in O.S.No.8398/2011 and the execution petition No.4185/2019 arising therefrom. Without cancellation of the entry of the sale agreement dated 01.08.1988, the entries in Book-I of the Sub-Registrar's office will always show the said entry of the sale agreement dated 01.08.1988 in respect of the suit schedule agreement dated 01.08.1988 in respect of the suit schedule property. Therefore, the present execution petition either for execution and registration of deed of cancellation of the sale agreement dated 01.08.1988 or alternatively execution of and registration of the order dated 12.08.2011 of the Hon'ble Supreme Court of India. The Hon'ble High Court of Karnataka vide judgment and decree dated 21.02.2011 in RFA No.142/2006 had set aside the judgment and decree dated 01.10.2005 passed in O.S.No.5448/1989 and as such, the original DHR was entitled for the cancellation of the sale agreement dated 01.08.1988. They are ready to bear all the cost and expenses for registering the cancellation deed / agreement or the orders dated 12.08.2011 passed in SLP (C) No.20968/2011. Hence, this petition for direction of this Court to execute and register the cancellation deed / agreement or the orders dated 12.08.2011 passed in SLP (C) No.20968/2011 in favour of the DHR.

3. The JDRs remained absent.

4. Heard the arguments from the side of the petitioner.
Perused the entire materials on record.

5. Now the points that arise for my consideration are as follows :-

1. Whether the petitioners have made out sufficient grounds to allow this petition ?

2. What order ?

6. My answer to the above points are as under:

Point No.1 :- **In the affirmative,**

Point No.2 :- As per the final order,
for the following:

REASONS

7. **POINT No.1:-** The Decree Holders have filed this petition against the Judgment Debtors under Order 21 Rule 11 (2) of CPC seeking for direction to execute and register the cancellation deed / agreement or the orders dated 12.08.2011 passed in SLP (C) No.20968/2011, in favour of the DHRs.

8. From the documents on record, it discloses that, one original JDR / Plaintiff A.Chandrashekaran had filed a suit against DHR / defendant Seshan for specific performance and permanent injunction in O.S.No.5448/1989. The said suit came to be decreed on 01.10.2005. The original DHR has challenged the judgment and decree dated 01.10.2005 before the Hon'ble High Court in RFA No.142/2006. During the pendency of the appeal, the original JDR expired and his legal heirs were brought on record i.e., the JDRs herein. The Hon'ble High Court vide judgment and decree dated 21.02.2011 allowed the appeal and set aside the judgment and decree dated 01.10.2005 passed in O.S.No.5488/1989 directing the appellant Seshan to pay a sum of Rs.3,50,000/- with interest at the rate of 24% p.a. from 01.08.1988. Aggrieved by the said order, original plaintiff A.Chandrasekharan preferred Special Leave to Appeal (Civil) No.20968/2011 before the Hon'ble Supreme Court. The Hon'ble Supreme Court have dismissed the petition filed by

Chandrasekharan confirming the RFA No.142/2006. The JDR did not accept the amount as directed by the Hon'ble High Court in RFA No.142/2006 and failed to hand over the vacant possession of the schedule property. Further, it is stated that, aggrieved by the acts and conduct of Chandrashekar, Sheshan had filed O.S.No.8398/2011 for recovery of possession. The said suit came to be decreed on 23.09.2019 directing the defendants to vacate and hand over the vacant possession of the suit schedule property in favour of plaintiff Seshan by receiving an amount of Rs.3,50,000/- with interest at the rate of 24% per annum from 01.08.1988, as per the directions of the Hon'ble High Court in RFA No.142/2006. Since the JDRs failed to handover the possession of the suit property, the DHR had filed Execution petition in No.4185/2019 to recover possession. Thereafter, the JDR handed over the keys and also original sale deed, allotment letter to the original DHR. The DHR expired on 26.06.2021 leaving behind his two sons and a daughter. For want of funds and fulfill other legal necessities, they decided to sell the suit schedule property. Accordingly, when they approached the revenue authorities for change of Katha, but as per requirements of the revenue authorities upto date ECs are to be obtained. On obtaining the EC, it was noticed that, the entry with regard to the registered sale agreement dated 01.08.1988 has not been cancelled pursuant to the RFA, SLP and the judgment and decree dated 23.09.2019 in O.S.No.8398/2011 and the execution petition No.4185/2019 arising therefrom. Without cancellation of the entry of the sale agreement dated 01.08.1988, the entries in Book-I of the Sub-Registrar's office will always show the said entry of the sale agreement dated 01.08.1988 in respect of the suit schedule agreement dated 01.08.1988 in respect of the suit schedule property. Therefore, the present execution petition either for execution and

registration of deed of cancellation of the sale agreement dated 01.08.1988 or alternatively execution of and registration of the order dated 12.08.2011 of the Hon'ble Supreme Court of India.

9. To establish their case, the applicant has produced the death certificate of Sri. Seshan i.e., original DHR, Smt.Sumithra W/o. Seshan, copy of the judgment and decree passed in O.S.No.5448/1989 dated 01.10.2005, wherein, it shows that, the said suit was filed by Chandrashekar against Seshan for specific performance of suit. After contest, the said suit came to be decreed. Thereafter, being aggrieved by the judgment and decree in O.S.No.5448/1989, Seshan had preferred an appeal before the Hon'ble High Court in RFA No.142/2006, wherein, it discloses that, the Hon'ble High Court have allowed the appeal and directed the appellant to refund the amount of Rs.3,50,000/- with interest at 24% per annum from 01.08.1988. Again, being aggrieved by the judgment of the Hon'ble High Court, Chandrashekar preferred an appeal before the Hon'ble Supreme Court. The Hon'ble Supreme Court have dismissed the appeal filed by Chandrashekar and confirmed the order of the Hon'ble High Court passed in RFA No.142/2006.

10. Further, the document shows that, the JDRs did not handover the possession of the schedule property, hence, the original DHR filed an execution petition No.4185/2019 to recover the possession. In the said execution petition, the JDRs handed over the keys and also the original sale deed dated 17.05.1988 and allotment letter dated 09.10.1974 to the original DHR i.e., their father. Thereafter, the petitioners have come up with this petition to remove the entry in the EC. On perusal of the documents on record, it discloses that, DHR Seshan become the owner of the suit property

by virtue of the judgments of the Hon'ble High Court and Hon'ble Supreme Court. The suit filed by JDR for specific performance of contract has been dismissed. Under the said circumstances, the sale agreement is not valid. In view of the judgments of the Hon'ble High Court, the entry regarding agreement of sale creates nuisance to the DHR to sell the property. Moreover, in the instant case, this Court has issued the notice and also the DHR has taken steps by way of paper publication, but none of them have come forward to file objection. Hence, in the interest of justice and equity, it is necessary to issue direction to the Sub-Registrar to remove the entries made in the EC in respect of the suit property. Accordingly, I answer **point No.1 is partly in the affirmative.**

11. **POINT No.2** :- In view of the aforesaid discussions, I proceed to pass the following :-

ORDER

This execution petition is hereby allowed partly.

Office is directed to issue intimation to the concerned Sub-Registrar to remove the entry regarding the agreement of sale dated 01.08.1988 appearing in their records.

(Dictated to the Stenographer, transcribed and typed by her, corrected and then pronounced by me in the open Court on this the **29th day of November, 2023**)

(SREENIVASA)

**I Addl. City Civil & Sessions Judge,
Bengaluru.**